

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

August 6, 2026

8:30 a.m./1:30 p.m.

2. KELSEY BROOKS V. NATHAN BROOKS

PFL20190875

On June 17, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The matter was originally filed ex parte, however, the court declined to make orders on an ex parte basis and instead referred the parties to Child Custody Recommending Counseling (CCRC). A review hearing was set for the present date.

The parties attended CCRC on July 7, 2026. They reached some agreements but could not agree on all issues. As such, a report with the agreements and recommendations was prepared on July 16th. It was mailed to the parties on July 17th.

Petitioner filed a supplemental declaration on July 27th along with a declaration of Wendy Cadei. There is no Proof of Service for either document therefore the court has not read or considered them.

Respondent has not filed a Responsive Declaration to Request for Order.

Petitioner is requesting sole legal and sole physical custody of the minors pending further investigation by CPS. If the court is inclined to award visitation to Respondent, Petitioner asks that the visits be professionally supervised and for the court to make any additional orders as it deems fit to ensure the children's safety.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the July 16, 2026 CCRC report to be in the best interests of the children and they are hereby adopted as the orders of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE JULY 16, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE CHILDREN AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.